

MANAGED IT SERVICES AGREEMENT

between A-IT and the Client named in the Order Form

[A-IT company name] · [registered/trading address] · [company number, if applicable]

This document is a working template and has not been reviewed by a solicitor. Have it checked before it is used to contract with a real client.

1. Parties and Interpretation

1.1 This Agreement is made between A-IT of **[registered/trading address]** (“the Provider”, “A-IT”, “we”, “us”) and the client named in the accompanying Order Form (“the Client”, “you”), together “the Parties”.

1.2 This Agreement consists of these terms, the Order Form (Schedule 2) and the Schedule of Services (Schedule 1), each of which forms part of a single agreement. Where there is a conflict, the Order Form takes precedence over these terms, and these terms take precedence over the Schedule of Services.

1.3 “Services” means the managed IT support and cybersecurity services corresponding to the Package selected by the Client in the Order Form, as described in Schedule 1.

1.4 “Device” means any workstation, laptop, server, or other endpoint enrolled for management under this Agreement and recorded in the then-current device count.

1.5 “Business Hours” means 9:00am to 5:30pm UK time, Monday to Friday, excluding bank and public holidays in England, unless a different scope is stated for the Client's Package in Schedule 1.

2. Services

2.1 A-IT will provide the Services described for the Client's selected Package (Bronze, Silver or Gold) as set out in Schedule 1, for the Devices notified by the Client and recorded in the Order Form or subsequently added under clause 4.

2.2 A-IT will use reasonable skill and care in providing the Services, in line with good industry practice for a managed service provider of comparable size.

2.3 The Client may request a change of Package by giving A-IT no less than **[14]** days' written notice. Charges will adjust from the start of the next billing cycle following the change taking effect.

2.4 A-IT may subcontract elements of the Services (for example, security monitoring or specific vendor escalations) but remains responsible for the performance of the Services as a whole.

2.5 The Services do not include: hardware or software procurement costs, third-party licence fees, on-site cabling or physical works, or any work outside the scope described in Schedule 1, unless separately agreed and charged.

3. Service Levels and Support

3.1 Support requests should be logged through A-IT's helpdesk (by phone or the agreed ticketing channel) so that response times can be tracked accurately.

3.2 A-IT will use reasonable endeavours to meet the target response times set out for the Client's Package in Schedule 1. These are targets for initial response, not guarantees of resolution time, which will vary with the nature of the issue and any third-party dependencies (e.g. ISP or software vendor faults).

3.3 Silver and Gold Packages include monitored and managed cybersecurity as described in Schedule 1. This is a detection and response service operating to industry-standard practice; it reduces but cannot eliminate the risk of a security incident, and A-IT gives no warranty that any system will be free from compromise.

3.4 Persistent failure to meet the response times in Schedule 1, other than for reasons outside A-IT's reasonable control, may be raised as a service credit request under Schedule 1 or, if unresolved, treated as a material breach under clause 10.

4. Devices and Changes in Scope

4.1 The Client must notify A-IT promptly, and in any event within **[5]** business days, of any Device added to or removed from its environment so the device count and fees can be adjusted.

4.2 Fees are calculated on the higher of (a) the Device count last confirmed in writing by the Client, or (b) the Device count actually detected and managed by A-IT's monitoring tools, to avoid under-billing where notification is late.

4.3 A-IT will confirm the current Device count and resulting monthly fee to the Client at least once per quarter.

5. Fees and Payment

5.1 Fees are calculated as the number of Devices multiplied by the per-Device monthly rate for the Client's Package, as set out in Schedule 1 and confirmed in the Order Form. VAT is not currently charged, as A-IT is not currently VAT-registered — this clause will be revisited if that changes.

5.2 Fees are invoiced monthly in advance and are payable by Direct Debit or bank transfer within **[14]** days of the invoice date, unless otherwise agreed in the Order Form.

5.3 A-IT may increase the per-Device rate for any Package once per 12-month period, on giving the Client at least **[30]** days' written notice. If the Client does not accept the increase, it may terminate this Agreement on **[30]** days' notice given before the increase takes effect, without further liability other than for Services already provided.

5.4 Overdue amounts accrue interest under the Late Payment of Commercial Debts (Interest) Act 1998 (or its successor) from the due date until paid. A-IT may suspend Services on **[10]** business days' written notice of non-payment, provided the amount remains unpaid at the end of that notice period.

5.5 Charges for work outside the scope of the selected Package (for example, one-off projects, additional hardware, or emergency out-of-hours work not covered by the Package) will be quoted and agreed with the Client in advance, save in a genuine emergency where A-IT may act reasonably and notify the Client as soon as practicable.

6. Term and Termination

6.1 This Agreement begins on the Commencement Date stated in the Order Form and continues for the Initial Term stated there, after which it continues on a rolling monthly basis unless terminated in accordance with this clause.

6.2 After the Initial Term, either Party may terminate this Agreement for convenience by giving the other not less than **[30]** days' written notice.

6.3 Either Party may terminate this Agreement with immediate effect by written notice if the other Party: (a) commits a material breach of this Agreement which, if capable of remedy, is not remedied within **[14]** days of written notice to do so; or (b) becomes insolvent, enters administration or liquidation, or suffers an equivalent process in its jurisdiction.

6.4 On termination for any reason, the Client remains liable for fees accrued up to the effective date of termination, and A-IT will, within a reasonable period and on request, provide reasonable assistance to transition the Services to the Client or a new provider, at A-IT's then-current time and materials rate unless otherwise agreed.

6.5 A-IT may suspend or remove its monitoring agents and management tools from the Client's Devices following termination, once outstanding fees for Services already delivered are settled.

7. Client Obligations

7.1 The Client will provide A-IT with reasonable access (remote and, where necessary, physical) to its systems, Devices, and premises, and with accurate and timely information needed to deliver the Services.

7.2 The Client remains responsible for its own data backups unless backup is expressly included in the selected Package, for maintaining appropriate software licences for its own line-of-business applications, and for decisions about its own business operations.

7.3 The Client will not knowingly ask A-IT to configure systems in a way that breaches applicable law or a third party's rights, and will ensure its staff use Devices and systems in line with any reasonable acceptable-use guidance provided by A-IT.

8. Data Protection

8.1 Each Party will comply with its obligations under the UK GDPR and the Data Protection Act 2018 in connection with this Agreement.

8.2 Where A-IT processes personal data on the Client's behalf in the course of providing the Services (for example, data encountered while providing helpdesk or monitoring support), A-IT acts as a processor and the Client as controller. The Parties will enter into a separate Data Processing Agreement, incorporated by reference, setting out the subject matter, duration, nature and purpose of processing, and A-IT's obligations regarding confidentiality, sub-processors, security, and assistance with data subject rights and breach notification.

8.3 A-IT will notify the Client without undue delay on becoming aware of a personal data breach affecting the Client's data, and will provide reasonably requested information to help the Client meet its own notification obligations.

9. Confidentiality

9.1 Each Party will keep confidential any non-public information it receives from the other in connection with this Agreement, and will use it only for the purposes of this Agreement, except where disclosure is required by law or regulation.

9.2 This clause survives termination of this Agreement.

10. Liability

10.1 Nothing in this Agreement limits either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

10.2 Subject to clause 10.1, A-IT's total liability arising out of or in connection with this Agreement in any 12-month period, whether in contract, tort (including negligence) or otherwise, is limited to the total fees paid by the Client under this Agreement in the 12 months preceding the event giving rise to the claim.

10.3 Subject to clause 10.1, A-IT is not liable for indirect or consequential loss, loss of profits, loss of business, or loss or corruption of data, save to the extent such loss arises from A-IT's failure to perform backup services it has expressly agreed to provide.

10.4 The Client acknowledges that no cybersecurity or IT management service can guarantee the prevention of every incident, and that A-IT's obligation is to provide the Services with reasonable skill and care, not to warrant an outcome.

11. Insurance

11.1 A-IT will maintain professional indemnity insurance and public liability insurance at levels appropriate to the Services, and will provide evidence of cover on reasonable request.

12. Force Majeure

12.1 Neither Party is liable for any failure or delay in performance caused by circumstances beyond its reasonable control, including but not limited to internet or utility outages, acts of government, or failures of third-party suppliers, provided the affected Party notifies the other promptly and takes reasonable steps to mitigate the impact.

13. General

13.1 Entire agreement. This Agreement (including its Schedules and Order Form) constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions or agreements on that subject.

13.2 Assignment. Neither Party may assign or transfer this Agreement without the other's prior written consent, except that A-IT may assign this Agreement to a purchaser of its business or substantially all of its assets.

13.3 Notices. Notices under this Agreement must be in writing and sent by email to the addresses confirmed by the Parties, or by post to the registered/trading addresses stated above, and are treated as received on the next business day.

13.4 Severability. If any provision of this Agreement is found unenforceable, the remaining provisions continue in full force.

13.5 Governing law. This Agreement is governed by the law of England and Wales, and the Parties submit to the exclusive jurisdiction of the courts of England and Wales.

Schedule 1 — Packages and Service Levels

The table below sets out the Services included in each Package. Descriptions marked for illustration should be reviewed and tightened to match exactly what A-IT delivers before this is sent to a client.

	Bronze	Silver	Gold
Price per device / month	£8.00	£15.00	£18.00
Helpdesk support	Business hours	Business hours, priority queue	24/7/365
Remote monitoring & patch management	Included	Included	Included
Monitored & managed cybersecurity	—	Business hours monitoring	24/7/365 monitored & managed
Target response time — critical issue	4 business hours	2 business hours	1 hour, any time
Strategic IT review	—	Annual	Quarterly

Service credits (optional)

If A-IT fails to meet the target response time in a given calendar month for more than **[X%]** of logged critical tickets, the Client may request a service credit of **[X%]** of that month's fee, claimed in writing within 30 days of the month end. This is the Client's sole remedy for a missed response time, save where clause 6.3 (material breach) applies.

Schedule 2 — Order Form

This Order Form, once signed by both Parties, incorporates the terms of the Managed IT Services Agreement above.

Client legal name	_____
Site address(es) covered	_____
Package selected (Bronze / Silver / Gold)	_____
Number of devices at commencement	_____
Monthly fee (devices x tier rate)	_____
Commencement date	_____
Initial term	_____
Billing cycle	Monthly in advance, by Direct Debit / bank transfer

Signed for and on behalf of A-IT

Name: _____ Position: _____

Signature: _____ Date: _____

Signed for and on behalf of the Client

Name: _____ Position: _____

Signature: _____ Date: _____

A-IT · a-it.uk · Draft template, version generated for review – not a substitute for solicitor sign-off before use with a real client.